Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1306
Claimant:	Ryan Miller
Adjuster:	Chelsea Hebert

2024-05-31 - Reviewed the first notice of loss for the sideswipe collision during a lane change. Insured reprots the other vehicle drifted into their lane on the highway and contact occurred at the rear quarter panel. Police report requested. Scene photos from the insured are on file and show scraping along the driver side. Claimant reported a wrist fracture at the scene and was transported by ambulance.

2024-06-06 - Spoke with the insured for a recorded statement. Insured confirms they checked mirrors and signaled before moving over but acknowledges their view of the adjacent lane was partially blocked by a truck. Witness contact information noted from the police report and a follow-up call was scheduled. Liability currently appears disputed, with preliminary falut leaning toward the other driver.

2024-06-09 - Received notice that the claimant is represented by counsel. All further communication regarding the bodily injury claim will be routed through the attorney's office. Requested medical authorization and itemized records for the wrist fracture treatment, including orthopedic consultation notes and sugrical records if applicable. Reserve placed on the bodily injury coverage pending documentation.

2024-06-16 - Obtained the vehicle damage appraisal for the claimant's vehicle and the insured's vehicle. Repair estimates reviewed and found consistent with the photographed damage. Rental coverage confirmed for the insured. Dashcam footage from a nearby vehicle has been requested through the witness and may help resolve the lane position question.

2024-06-20 - Received a letter of representation and a deamnd package from the claimant's attorney, which is under review. Medical bills and wage loss documentation are still incomplete. Scheduled an internal file review with the supervisor to assess liability allocation and settlement authority. Next step is to follow up on the outstanding records and the dashcam request before responding to the demand.

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Recorded Statement

Claim number:	C-1306
Statement of:	Ryan Miller
Taken by:	Chelsea Hebert
Date:	2024-05-28

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just keep it to the accident, if that's alright.

Q: That's fine. For the record, I'll note that you've declined to state your name at this time. Can you tell me where the accident happened?

A: It was on the main road in League City, Texas, heading toward the freeway. I was moving over into the right lane because I needed to make my exit.

Q: Had you signaled before you changed lanes?

A: Yes, I put my turn signal on a good while before I moved over. I checked my mirror and my blind spot too.

Q: What happened next?

A: The other car was in that lane, a bit back, and when I started to move over, it sort of drifted into me. We sideswiped. My side mirror clipped their rear quarter panel and then my car got pushed toward the curb.

Q: Did you lose control of your vehicle?

A: For a second, yeah. I jerked the wheel to correct and I hit the brakes. The car stopped against the curb.

Q: Were you injured?

A: My right wrist took the brunt of it. I grabbed the steering wheel and the airbag came out, and I felt something snap right away. They took me in and the doctor said it was a fracture.

Q: Have you received treatment since then?

A: Yes, I've had a cast put on and I have a follow-up scheduled with an orthopedic specialist. I'm not able to drive much right now, so that's been hard.

Q: Thank you. Is there anything you'd like to add?

A: Only that I was following the rules and I think the other driver should be responsible for the damage.

Q: Thank you. This concludes the statement.